DRAFT

THE CORPORATION OF THE TOWNSHIP OF NIPISSING

By-Law Number 2023-15

Being a By-law to establish and/or continue a Fire Department.

WHEREAS Section 8.(1) of the Municipal Act, S.O. 2001, Part II, provides that the powers of a municipality under this or any other Act shall be interpreted broadly so as to confer broad authority on a municipality to enable the municipality to govern its affairs as it considers appropriate and to enhance the municipality's ability to respond to municipal issues;

AND WHEREAS Section 9 of the Municipal Act, S.O. 2001, Part II, provides that a municipality has the capacity, rights, powers and privileges of a natural person for the purpose of exercising its authority under the Act;

AND WHEREAS the Fire Protection and Prevention Act, 1997, Part II, section 5(0.1), as amended, permits the Council of a municipality to establish, maintain and operate a fire department for all or any part of the municipality;

BE IT THEREFORE ENACTED by the Municipal Council of the Corporation of the Township of Nipissing as follows:

1. In this By-law, unless the context otherwise requires,

   a) "Approved" means approved by the municipal council.

   b) "Automatic Aid" means any agreement which the Corporation has entered into with a neighbouring municipality to provide or receive an initial response to fires, rescues and emergencies which may occur in an area more quickly accessed by the other fire department which is capable of responding to the incident.

   c) "Company" means a complement of fire department personnel operating one or more pieces of apparatus or equipment.

   d) "Corporation" means the Corporation of the Township of Nipissing.

   e) "Council" means the Council of the Township of Nipissing.

   f) "Department" means the Township of Nipissing Fire Department.

   g) "Deputy Fire Chief" means the person(s) appointed by the Council of the Township to act in the place of the Fire Chief in the Fire Chief's absence.

   h) "Fire Chief" means a Fire Chief appointed under subsection 6(1), (2), or (4) of the *Fire Protection and Prevention Act*.

   i) "Fire Department" means a group of firefighters authorized to provide fire protection services by a municipality, and/or group of municipalities, and/or by agreement under Section 3 of the *Fire Protection and Prevention Act*.

   j) "Fire Protection" means a range of programs designed to protect the lives and property of the inhabitants of the fire department response area from the adverse effects of fire, sudden medical emergency or exposure to dangerous conditions created by man or nature and includes fire suppression, fire prevention, fire safety education, communication, training of persons involved in the provision of the fire protection services, rescue and emergency services and the delivery of all of those services.

   k) "Firefighter" means a Fire Chief and any other person employed in, or appointed to, a fire department and assigned to undertake fire protection services, and includes a volunteer firefighter.

l) "Limited Service" means a variation of service significantly differentiating from the norm as a result of extenuating circumstances, such as deployment of Volunteer Firefighters in insufficient numbers to safely carry out the delivery of Fire Protection Services, environmental factors, remote properties, impeded access, private roadways, lanes and drives, obstructions, or extraordinary hazards or unsafe conditions.

m) "Medical Response" means responding to emergent or urgent medical requirements at a fire scene or a motor vehicle accident in the course of responding to the emergency or call.

n) "Member" means any defined firefighter or employee of the department.

o) "Municipal Administrator" means the duly appointed Municipal Administrator for The Corporation of the Township of Nipissing.

p) "Mutual Aid" means a program to provide/receive assistance in the case of a major emergency in a municipality, community or area where resources in a municipality, community or area have been depleted, but does not include "Automatic Aid".

q) "Mutual Aid Plan" means the Province of Ontario Mutual Aid Plan, which incorporates the county, regional and district mutual aid plans developed under the authority of the *Fire Protection and Prevention Act, 1997*, and under the direction of the Fire Marshal, facilitate the provision of fire protection services to the residents of counties, regions and districts under a coordinated and cooperative provincial plan.

r) "NPPA" means the *Fire Protection and Prevention Act, 1997*, S.O., c 4, as may be amended from time to time, or any successor legislation, and any regulation made thereunder.

s) "Officer" means Fire Chief, Deputy Fire Chief, Captain, Lieutenant, Fire Prevention Officer, or any person designated by the fire Chief to supervise Firefighters.

t) "Private Roads" means any private road, lane, ramp, un-assumed and unmaintained Municipal road allowance, or other means of vehicle access to or from a building or structure and may include part of a parking lot.

u) "Property" means any real property located within the geographical boundaries of the Township of Nipissing, including buildings, structures and erections of any nature and kind in or upon such lands, but excludes real property owned by the Crown either Federally or Provincially.

v) "Volunteer Firefighter" means a firefighter who provides fire protection services either voluntarily or for a nominal consideration, honorarium, training or activity allowance.

2. a) A department for the Township of Nipissing to be known as the Township of Nipissing Fire Department is hereby continued and the head of the department shall be known as the Fire Chief.

b) The (goals/mission statement) of the department shall be as those contained in Appendix "A" of this by-law.

c) The department shall be organized as per Appendix "B" forming part of this by-law.

d) The core services provided by the Township of Nipissing Fire Department shall be those contained in Appendix "C" of this by-law.

e) Fire Prevention and Public Education shall be performed as contained in Appendix "D" of this by-law.

f) Private Road Standards required for fire and emergency response shall be detailed in Appendix "E" of this by-law.

3. In addition to the Fire Chief, the department personnel may consist of a Deputy Fire Chief (s) and such number of officers and members as from time to time be deemed necessary by the Council.

4. a) The Fire Chief may recommend to Council the appointment of any qualified person as a member of the department subject to the approved hiring policies of the Township and the Promotional Policy stated in 4(c) of this By-Law.

   b) A person appointed as member of the department shall be on probation for a period of one year, during which period the probationary member shall take such special training and examinations as may be required to acquire competencies of an active firefighter.

   c) The method of Promotion within the Township of Nipissing Fire Department shall be as follows:
      i) Following the probationary year and completion of required competencies, the title of Firefighter shall be earned;
      ii) Following three (3) consecutive, active years as a Firefighter, and completion of all required competencies of an officer to level of Lieutenant, any posted openings for the position of Lieutenant may be applied for and the Firefighter may be considered for the competition;
      iii) Following the completion of competencies of an officer to level of Captain, which will include competencies of Firefighter and Lieutenant, any posted openings for the position of Captain may be applied for and the Firefighter may be considered for the competition.

5. a) The Fire Chief may reprimand, suspend or recommend dismissal of any member for non-compliance with any of the provisions of this by-law or general orders and departmental rules that in the opinion of the Fire Chief, would be detrimental to the discipline, health, safety and efficiency of the department.
   b) Following the suspension of any member the Fire Chief shall immediately report, in writing, the suspension and recommendations to the Municipal Administrator.
   c) A member shall not be dismissed without being afforded the opportunity for a hearing before Council, if the member makes a written request for such hearing within seven working days after receiving the proposed dismissal.

6. The remuneration of all members of the department shall be as determined by Council.

7. The Fire Chief is responsible to Council for the proper administration and operation of the department and is under the general direction of the Municipal Administrator.
   The Fire Chief shall provide the following administrative and operational items:
   a) Develop, review and publish policies, operational guidelines, general orders and departmental rules as may be necessary for the care and protection of the personnel, department, department equipment and for the efficient operation of the department, provided that such policies, orders and rules do not conflict with the provisions of any by-laws of the municipality. The Fire Chief shall be responsible for the enforcement of this by-law, general orders and departmental rules.

   b) Establish a review schedule and adhere to that schedule for periodical review of all department policies and procedures. The Fire Chief may establish an advisory committee consisting of such members of the department as may be determined to assist in these duties.

   c) Establish a comprehensive Fire Prevention and Education Program which will encompass proper measures for the prevention, control and extinguishment of fires and for the protection of life and property. The department, under direction of the Fire Chief, will enforce all provincial legislation and municipal by-laws respecting fire prevention and shall adhere to the provisions of the Fire Protection and Prevention Act.

d) Review and update the Municipal Fire Risk Assessment annually.

8. RECOVERY OF COSTS – ADDITIONAL EXPENSES

a) The Fire Chief may require property owners or persons within or outside the municipality to pay costs or fees for fire and emergency response or other administrative services provided to them. Invoicing for response services or recovery of fees will be conducted in accordance with the Township of Nipissing User Fees By-Law in-force.

b) If as a result of a Fire Department response to a fire or emergency incident, the Fire Chief or his/her designate determines that it is necessary to incur additional expenses, retain a private contractor, rent special equipment not normally carried on a fire apparatus or use more materials than are carried on a fire apparatus (the "Additional Service") in order to suppress or extinguish a fire, preserve property, prevent a fire from spreading, control and eliminate an emergency, carry out or prevent damage to equipment owned by or contracted to the Corporation, assist in or otherwise conduct fire cause investigation or determination or otherwise carry out the duties and functions of the Fire Department and/or to generally make "safe" an incident or property, the owner of the property requiring or causing the need for the Additional Service or expense shall be charged the full costs to provide the Additional Service including all applicable taxes. Property shall mean personal and real property.

9. The Deputy Fire Chief(s) is/are responsible to the Fire Chief for the functions that are supervised by the Deputy Fire Chief(s) and shall have the same authority and responsibilities as the Fire Chief and shall perform all the duties of the Fire Chief in the Fire Chief's absence.

FIRE CHIEF DUTIES:

The Fire Chief is responsible for ensuring the following duties are carried out:

Administration

a) Provide administration facilities and provide for the completion of all general administration duties for the department.
b) Prepare and monitor the departmental budget.
c) Prepare the points calculations semi-annually of the department and maintain all personnel records in accordance with the policy of the Township, certify all accounts and initiate requisitions for materials and services of the department.
d) Maintain and ensure that the Promotional Procedure in effect is followed.
e) Prepare the monthly and annual report of the department.
f) Provide liaison with the local firefighters' association(s) and Mutual Aid Coordinator.
g) Assist the District Fire Coordinator in the preparation of a Mutual Aid Plan and Program.

Apparatus and Equipment

a) Maintain and keep in good repair all existing buildings, apparatus and equipment of the department.
b) Prepare specifications for the purchase of apparatus and equipment when required and approved.
c) Prepare the annual budget and forecast capital requirements for apparatus and equipment.

Fire Suppression

a) Prevent, control and extinguish fires,
b) Conduct investigations of fire scenes in order to determine cause and origin, and where required, to request appropriate agencies to assist with the investigation,
c) Respond and assist at such emergencies as may be deemed necessary by the Fire Chief,

d) Perform pre-emergency planning,
e) Perform apparatus and equipment maintenance and cleaning duties,
f) Captains or designates are in command of the company to which they are assigned and are responsible to the Fire Chief and Deputy Fire Chief.
g) Where the Fire Chief designates a member to act in the position of an officer, such member when so acting, has all the authority and responsibility of such officer and shall perform all the duties of the officer replaced.

Fire Prevention

a) Develop approved fire prevention and public fire safety education policies and procedures.
b) Ensure compliance with the Fire Protection and Prevention Act.
c) Maintain fire loss records.

Training

a) Establish a fire department training program and conduct training for all members in accordance with the approved training program.
b) Administer training programs and maintain records.
c) Prepare and conduct examinations of members as required.

The department shall not respond to a call with respect to a fire or other emergency outside the approved response areas of the municipality with the following exceptions:

a) That in the opinion of the Fire Chief, or designate, threatens property in the municipality or property situated outside the municipality that is owned or occupied by the municipality,
b) In a municipality with which an Automatic Aid Agreement has been entered into to provide fire protection when required,
c) On property with respect to which an agreement has been entered into with any person or corporation to provide fire protection therefore,
d) At the discretion of the Fire Chief, to a municipality authorized to participate in the Mutual Aid Plan and Program on a reciprocal basis, or
e) On property beyond the municipal boundary where the Fire Chief, or designate, determines that immediate action is necessary to preserve and protect life and/or property and the correct department is notified and/or assumes command. The Fire Chief shall subsequently inform the head of Council of such response.

LIMITED SERVICE

In consideration of the reliance by the Fire Department on the response of Volunteer Firefighters, whose deployment to emergencies in sufficient numbers cannot in all instances be guaranteed, adverse climate conditions, delays or unavailability of specialized equipment required by the Fire Department, or other extraordinary circumstances which may impede the delivery of Fire Protection Services, any Approved Service set out in Schedule "B" may from time to time be provided as a Limited Service as defined in this by-law, as determined by the Fire Chief, his or her designate, or the highest ranking Officer in charge of a response.

This By-Law comes into effect the day it is passed by Council.

That By-law 2020-35 is hereby repealed.

Read a first, second and third time and passed this 21st day of February, 2023.

THE CORPORATION OF THE
TOWNSHIP OF NIPISSING

_____
Tom Piper, Mayor

_____
Kris Croskery-Hodgins,
Municipal Administrator-Clerk-Treasurer

TOWNSHIP OF NIPISSING FIRE DEPARTMENT
ESTABLISHING AND REGULATING BY-LAW NO. 2023-15

APPENDIX "A"

PRIMARY GOALS OF THE TOWNSHIP OF NIPISSING FIRE DEPARTMENT

The goal of the Township of Nipissing Fire Department is to provide fire protection services through a range of programs designed to protect the lives and property of the inhabitants from adverse effects of fires, sudden medical emergencies or exposure to dangerous conditions created by man or nature; first to the municipality; second, to those municipalities requiring assistance through authorized mutual fire aid plan and program activities; and third, to those municipalities which are provided fire protection by the fire department via authorized agreement.

In order to achieve the goals of the fire department, an accurate budget and capital forecast method must be incorporated to adequately review and identify the fire protection service requirements of the municipality on an annual basis.

Provide an administrative process consistent with the needs of the fire department,

Ensure that fire suppression apparatus, equipment and personnel are available within the municipality to provide adequate response to a fire/emergency call within a reasonable length of time.

Provide departmental training to an accepted standard which will ensure the continuous education of all personnel in the latest techniques of fire prevention, fire suppression and control of emergency situations and to work with other departments of the Corporation with respect to training and other programs.

Provide a maintenance program to ensure fire protection apparatus and equipment, is ready to respond to emergency calls.

Provide an effective fire prevention program to reduce or eliminate fire hazards.

Develop and maintain an effective public education system and educational program with particular emphasis on children and seniors fire safety and fire prevention practices for water access properties.

Ensure in the event of a major incident in the municipality, assistance to cope with the situation is available from outside departments and other agencies.

Develop and maintain a good working relationship with all federal, provincial and municipal departments, utilities and agencies, related to the protection of life and property.

Interact with other departments of the Corporation respecting the aspects of fire on any given program,

Ensure these objectives are not in conflict with any other department of the Corporation.

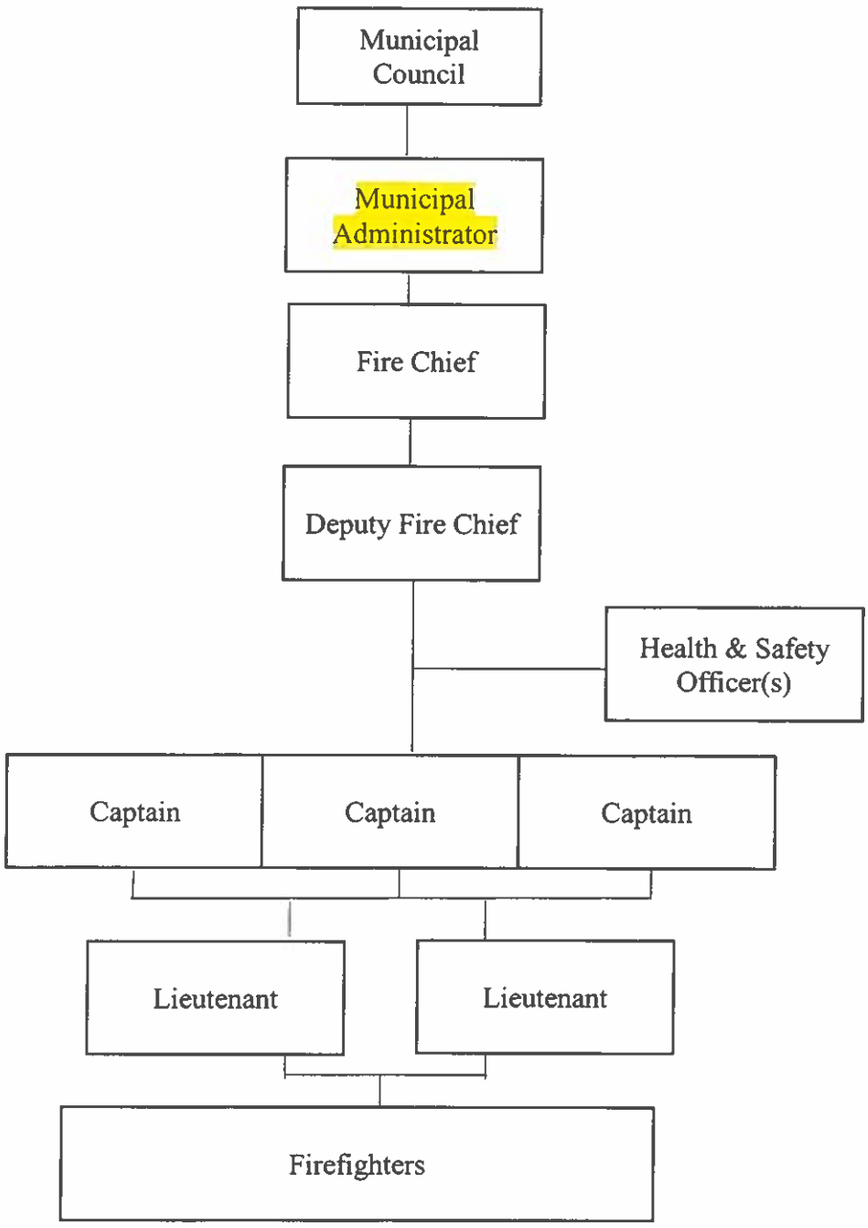
Township of Nipissing Fire Department Mission Statement:

The primary mission of the Township of Nipissing Fire Department is to provide a range of programs to protect the lives and property of the inhabitants of the Township of Nipissing from the adverse effects of fires, sudden medical emergencies or exposure to dangerous conditions created by humankind or nature.

TOWNSHIP OF NIPISSING FIRE DEPARTMENT
ESTABLISHING AND REGULATING BY-LAW NO. 2023-15

APPENDIX "B"

TOWNSHIP OF NIPISSING FIRE DEPARTMENT ORGANIZATIONAL CHART



TOWNSHIP OF NIPISSING FIRE DEPARTMENT
ESTABLISHING AND REGULATING BY-LAW NO. 2023-15

APPENDIX "C"

TOWNSHIP OF NIPISSING FIRE DEPARTMENT
CORE SERVICES PROVIDED

EMERGENCY RESPONSE

1. Basic firefighting

The Fire Department shall respond to fires, alarms of fire, and pre-fire conditions to provide fire suppression services, and shall exercise best efforts to conform to the most recent edition of National Fire Protection Association (NFPA) 1720, Standard for the Organization and Deployment of Fire Suppression Operations, Emergency Medical Operations, and Special Operations to the Public by Volunteer Fire Departments as revised from time to time.

2. Structural firefighting including rescue

For the purpose of this Schedule, "Structural Firefighting" shall have the same meaning as Structural Firefighting as defined by NFPA 1720, Standard for the Organization and Deployment of Fire Suppression Operations, Emergency Medical Operations, and Special Operations to the Public by Volunteer Fire Departments.

Emergency responses to water access properties including islands and to those properties accessed via waterways subject to the following limitations. Water access properties will be limited to public education, there will be no fire suppression or rescue.

A) *Interior Search and Rescue* – Shall be provided when possible and as appropriate in accordance with the following:

- Service shall be provided to search for and rescue endangered, trapped or potentially trapped persons within the structure.
- Service shall be provided only when, in the opinion of the Fire Chief or most senior Officer in charge, all of the following are true:

  i. A scene risk assessment has been completed, and the level of risk reasonably justifies entry into the structure;

  ii. Building integrity permits entry into the structure;

  iii. Sufficient Trained Firefighter staffing is deployed at the fireground;

  iv. Reliable water supply with adequate flow can be sustained;

  v. Adequate fireground supervision and support is provided.

B) *Interior Fire Suppression (Offensive Operations)* – Shall be provided when possible and as appropriate in accordance with the following:

- Service shall be provided to contain the fire and prevent further loss of property.
- Service shall be provided only when, in the opinion of the Fire Chief and or Deputy Chief in charge, all of the following are true:

  i. A scene risk assessment has been completed, and level of risk reasonably justifies Firefighter entry into the structure;

  ii. Building integrity permits entry into the structure;

  iii. Sufficient Trained Firefighter staffing is deployed at the fireground;

  iv. Reliable water supply with adequate flow can be sustained;

  v. Adequate fireground supervision and support is provided.

C) *Exterior Fire Suppression (Defensive Operations)* – Shall be provided when possible and as appropriate, in the opinion of the Fire Chief or most senior Officer in charge, in accordance with the following:

- There shall be no expected rescue component with this service.
- Service shall be provided to prevent fire spread to adjacent areas.

- Service shall be provided when Interior Fire Suppression is not possible or appropriate.
- Service shall be provided as water supply permits.

3. Vehicle firefighting

Service shall be provided to control and extinguish vehicle fires and prevent the spread of fire to adjacent areas.

4. Grass, brush, forestry firefighting

Service shall be provided and best efforts shall be exercised to conform to NFPA 1143, Standard for Wildland Fire Management

5. Automatic Aid Response Services

Service shall be provided in accordance with any Automatic Aid agreements in place and duly approved by Council

6. Mutual Aid Response Services:

Service shall be provided in accordance with the Mutual Aid Plan established in respect to the municipalities within the County/District/Region pursuant to clause 7(2)(a) of the Fire Protection and Prevention Act.

7. Awareness level hazardous materials

The most appropriate agency shall be contacted to address the concern with the Township of Nipissing Fire Department providing support and containment of the area and retaining command of the incident.

8. Vehicle accidents

The Fire Department shall respond to vehicle accidents to provide the following services:

i. Stabilizing the scene of the accident;

ii. Stabilizing the vehicles involved in the accident;

iii. Providing aid to injured or trapped persons;

iv. Mitigating adverse effects to the natural environment.

9. Vehicle extrication

Auto Extrication can include performing automobile and/or equipment extrication using hand tools, and/or hydraulic tools, as required.

10. Transportation incidents involving vehicles, aircraft

Response shall be provided to large-scale transportation incidents that may involve large numbers of casualties, widespread damage to property, and/or significant environmental impact.

11. Remote Extraction

Remote Extrication shall be provided when possible and as appropriate in accordance with the following:
Service for Remote Extrication may occur on land or on a frozen body of water;

Service shall be provided only when the following criteria have been met AND the Fire Chief or Deputy Fire Chief have considered and approved of the safety of Fire Personnel, weather conditions and terrain:

i. A scene risk assessment has been completed and the level of risk reasonably justifies the extrication.
ii. Extrication applies to human life only.
iii. Extrication may involve an MVC and/or Medical Emergency.
iv. A frozen body of water shall have at least 20.32cm (8 inches) of approved ice, consulting with local tourism operators and Fire Department evaluations, see Operating Guideline for appropriate procedure for evaluation.
v. Extrication operations will be limited to a traveled portion of the frozen body of water or if ice is evaluated to be safe as per line (iv).
vi. Remote Extrication response shall require and initial minimal response of (2) sufficiently trained personnel. Personnel will be trained as per the corresponding Operating Guideline, which will be reviewed annually.
vii. Remote Extrication shall be limited to Fire Service equipment only.

viii. Remote Extrication on a frozen body of water shall be limited to the dates of January 1st to March 31 of any given year. These dates may be reduced or extended as indicated in line (iv) AND approved by the Fire Chief.

12. Water, (swift, surface, through the ice)
Rescue of persons from water by reaching or throwing from a shore-based location or from a location assessed as per 11 criteria.

13. Public assistance
Carbon monoxide Incidents – Response shall be provided to carbon monoxide alarms and emergencies.

14. Ambulance assistance – first response
Service shall be provided to assist Emergency Medical Services with emergency and non-emergency situations with respect to providing access and/or the provision of care to patients

15. Police assistance
Service shall be provided to assist Police with emergency and non-emergency situations for which the Fire Department has equipment and/or specialized skills to assist in the mitigation.

16. Public utilities assistance
Service shall be provided to assist the public with emergency and non-emergency situations for which the Fire Department has the equipment and/or specialized skills to mitigate the incident. Costs associated with Fire Department response may apply.

17. Community emergency plan participation
Service shall be provided in accordance with the Approved Emergency Management Program.

18. Assistant to Fire Marshal re: suppression
Duties of Assistant to the Fire Marshal shall be carried out as prescribed by the *Fire Protection and Prevention Act.*

19. Marine firefighting
Marine firefighting service shall be limited to shore-based, defensive firefighting operations only.

20. Highway Incident Services
Fire Protection Services shall be provided to the provincial highways. Costs associated with Fire Department response to provincial highways shall be recovered in accordance with applicable provincial fire service agreements and municipal User Fee By-Laws.

21. Tiered Medical Assistance Services
Service shall be provided in accordance with the Emergency Medical Tiered Response Agreement between the Parry Sound, Emergency Medical Services and the Township of Nipissing.

22. Emergency Pre-Hospital Care Response
Emergency pre-hospital care responses and medical acts or other first aid/CPR /AED services shall be maintained as per local protocol as appropriate and instituted as per the latest Emergency Services Agreement (nee tiered response agreement) and appropriate to the needs of the municipality as recommended by the Fire Chief and as agreed

23. Other Specialized Rescue
Other specialized rescues such as Surface Water Rescue, HUSAR (Heavy Urban Search and Rescue), Rope Rescue, Confined Space rescue, Trench Rescue, Cave, Mine, and Tunnel Rescue Hazardous Materials Response (Technical Level), and Swiftwater Rescue, Industrial and Machinery Rescue, Farm and Silo Rescue will not be provided by the Township of Nipissing beyond the awareness level.
Notwithstanding, the Township of Nipissing may contract other agencies to provide this service in an emergency incident and will provide assistance as appropriate to the level of skills and training afforded at the awareness level or its current capability.

FIRE PREVENTION AND PUBLIC EDUCATION

1. inspection practices, including:
   a. complaint inspections
   b. conducting routine inspections per Fire Prevention Policy
   c. dealing with code compliance issues (mandated)
   d. enforcing municipal by-laws
   e. conducting inspections, preparing reports and issuing written responses to requests

2. public education practices, including
   a. providing routine education programs as per Fire Prevention Policy, Schedule "D"
   b. facilitating smoke and carbon monoxide alarm initiatives
   c. providing access for media
   d. delivery of specialized programs

3. fire investigation practices, including
   a. determining cause and origin
   b. assessing code compliance
   c. assessing fire suppression effectiveness
   d. interacting with OFMEM investigator
   e. supporting legal proceedings, as required
   f. consulting with police and other agencies

The Nipissing Fire Department will follow the recommended staffing levels provided by the Office of the Fire Marshal and Emergency Management.

The minimum number of firefighters shall be twenty (20) and the maximum number shall be thirty (30) for the Township of Nipissing Fire Department.

Any additional applicants after maximum levels have been reached will be placed on a waiting list and will be contacted as required.

TOWNSHIP OF NIPISSING FIRE DEPARTMENT
ESTABLISHING AND REGULATING BY-LAW NO. 2023-15

APPENDIX "D"

FIRE PREVENTION AND PUBLIC SAFETY PROGRAMS POLICY

Purpose:
To develop a policy and establish programs which include public education with respect to fire safety and certain components of fire prevention. 2(1) Fire Protection and Prevention Act states that every municipality shall establish a program in the municipality which must include public education with respect to fire safety and certain components of fire prevention.

It is the policy of the Township of Nipissing Fire Department:

- That the Fire Chief and/or designated firefighters will conduct inspections of the properties specified, at the frequencies indicated.

Inspection Schedule

ASSEMBLY OCCUPANCIES	FREQUENCY
General	
Churches	Request or Complaint
Community Halls	Annually
Museum	Annually
School	Annually
Municipal Office	Annually
Township Garage	Annually
Residential	
Detached & Semi-detached houses	Request or Complaint
Houses with two dwelling units	Request or Complaint
Residence with attached business	Request or Complaint
Hotels/Motels	Request or Complaint
Bed & Breakfast	Request or Complaint
Recreational Camp	Request or Complaint
Recreational Trailer Facilities	Request or Complaint
Commercial	
Stores/Businesses	Request or Complaint
Restaurants/Food Service	Request or Complaint
Industrial	
Spray Painting Operations	Request or Complaint
Repair Garages	Request or Complaint
Woodworking Factories	Request or Complaint
Marinas	Request or Complaint

Township of Nipissing Fire Department Public Education Program

The Public Education Program will be an ongoing program, operating 12 months of the year and will be conducted in accordance with the FPPA and the Establishing and Regulating By-Law.

- Public Education events will be scheduled as per the Simplified Risk Assessment.
- Public Education materials will be distributed during each event.
- Public Education will focus on youth, schools and senior's groups with added attention to fire prevention methods for water access properties.
- South Shore Education Centre will be contacted to become a working partner in Fire Safety. An annual fire safety event will be held at South Shore Education Center.
- The Township of Nipissing website will be utilized to distribute Public Fire Safety Material. This will be done monthly and at pre-scheduled events.
- Signs located at fire stations 1 & 2 will be utilized to delivery Fire Safety Messages as per an annual schedule, with the topic changing monthly and corresponding to the messages used on the municipal website and social media.
- The Fire Department will be distributing Fire Safety Material after each fire related incident to the affected parties. An education package focused to this purpose will be prepared, reviewed regularly and available on all apparatus for distribution by fire personnel.
- Individual Fire Prevention Education Packages will be developed, reviewed and circulated regularly to the following:
    - Water Access Properties
    - Trailers
    - Cottages/Seasonal Dwellings/Hunt Camps

Township of Nipissing Fire Department
Smoke and Carbon Monoxide Alarm Program

The Smoke and Carbon Monoxide (CO) Alarm Program will be an ongoing program, operating 12 months of the year and will be conducted in accordance with the FPPA and the Establishing and Regulating By-Law.

- The Fire Department will actively work on circulating information on this programming, concentrating on the period between April 1 to November 1 each year.

- In accordance with the Simplified Risk Assessment, a goal of 100 property visits annually will be set. This goal will be re-evaluated each year for attainability.

- All firefighters shall receive an education package and in-class training regarding facts about smoke and CO alarms, legislation and by-laws prior to conducting home inspections.

- A Smoke and Carbon Monoxide Alarm Inspection form shall be completed for each home inspection. As part of each inspection a Pre-Incident information form will be completed. All completed forms shall be kept in secure files within the Fire Chief's control.

- Outreach will be done to all Trailer Parks and Resorts to provide ongoing education to owners and guests.

- An Alarm Loaner Program shall be developed and maintained by the Fire Department to ensure that all properties are in compliance with the Smoke and CO Alarm legislation, *Fire Protection and Prevention Act, 1997 (FPPA)*. An Alarm Loaner form shall be completed for all properties found to be not in compliance.

Following clearance of each occurrence the Township of Nipissing Fire Department is called to, a Property Release Form shall be completed and an information package shall be provided to the property owner and/or resident. Completed forms shall be kept in care and control of the Fire Chief.

SMOKE & CARBON MONOXIDE ALARM INSPECTION

Date of Inspection: Month day year

Time of Inspection:

Address:

Visible from Road:
Yes ☐ No ☐

Person Contacted:

Owner ☐ Occupant ☐

Signature:

Telephone:_____

Email:

ALARMS HAVE BEEN TESTED AS A RESULT OF:

☐ Fire Related Incident ☐ Transfer of Property Ownership ☐ Fire Inspection
☐ Request by the Occupant or Property Owner ☐ Other:_____

ALARM INSPECTION:

Smoke and CO alarms shall be installed between each sleeping area and the remainder of the dwelling unit, and where the sleeping areas are served by hallways, the smoke and CO alarms shall be installed in the hallways.
In addition to the requirements above, at least one smoke alarm and CO alarm shall be installed on each storey that does not contain a sleeping area in a dwelling unit.

Smoke Alarms present and installed where required: ***If no Alarm present, an Alarm Loaner Form must be completed.***	Yes ☐	No ☐
If battery operated, was the battery working:	Yes ☐	No ☐
If FD supply a new battery, was it installed and tested:	Yes ☐	
Carbon Monoxide Alarms present and installed where required: ***If no Alarm present, an Alarm Loaner Form must be completed.***	Yes ☐	No ☐
If battery operated, was the battery working:	Yes ☐	No ☐
If FD supply a new battery, was it installed and tested:	Yes ☐	
Did the required alarm(s) operate normally: ***If "No", an Alarm Loaner Form must be completed.***	Yes ☐	No ☐
Are the alarms expired: ***If "Yes", an Alarm Loaner Form must be completed.***	Yes ☐	No ☐
Is a follow-up inspection required:	Yes ☐	No ☐

ALL ALARMS ARE TO BE INSTALLED AS PER MANUFACTURER SPECIFICATIONS.

ESCAPE PLANNING:

Does The occupancy have a Home Escape Plan:	Yes ☐	No ☐
Home Escape Planning Information has been provided:	Yes ☐	

Inspection Completed by:_____ _____
Print Signature

In accordance with the Establishing and Regulating By-Law, Appendix "D"

PRE-INCIDENT PLANNING NOTES:

Viable water source close by? Yes No

Possible Winter water source? Yes No

If yes, approximate depth of water:_____

Propane tank(s) located on property? Yes No
If yes, where and what type?_____

Solar Panels onsite? Yes No
If yes, where are they located and how many?_____

_____

Outbuildings located on property? Yes No
If yes, any dangerous chemicals/hazards identified within?_____

_____

Driveway (note any dangerous areas/line of sight difficulties):

_____

_____

Other information:

_____

_____

_____

_____

_____

_____

ALARM LOANER PROGRAM

Smoke Alarm ☐	CO Alarm ☐	Call Number:
Date:	Time:	Alarm Expiration Date:
Building Owner: Print		Occupant: Print
Address:		
Number of alarms left:	Basement: ☐ First Floor: ☐ Second Floor: ☐ Other:	
This alarm was received in good condition by: Signature		
Station Officer:		

A loaner alarm was provided to the owner/occupant for your immediate protection. A new battery was provided with the alarm. Township of Nipissing FD staff demonstrated the operation of the alarm and ensured it was functional before departing the scene. You are required by law to ensure the required alarm is maintained in working condition. Failure to do so may result in a fine.

The loaned alarm MUST be returned to the Township of Nipissing Office (45 Beatty Street, Nipissing, 705-724-2144) during regular business hours (Monday to Friday 8:30 a.m. to 4:30 p.m. excluding lunch 12:00 to 12:30 pm). The alarm must be returned in operable condition within one week of being loaned or an invoice will be issued to the property owner as outlined in the current User Fee By-Law. The alarm will not be accepted at any other location.

Refused Alarm

The owner/occupant refused the provision of an alarm. Both provincial legislation and municipal by-law require the installation of a working Smoke Alarm and CO alarm. Failure to do so may result in prosecution. It is the owner/occupant's responsibility to ensure a working smoke and CO alarm is properly installed and maintained. The undersigned will ensure an alarm is put into place immediately and will ensure the property remains safe until an alarm can be installed.

Date	Owner/Occupant Signature	Station Officer Signature

Returned Alarm

Date:	Returned by:
Alarm Condition:	Battery Replaced:
Alarm Expiration Date:	
The alarm was received in good condition by:	

This form is issued per the Establishing and Regulating By-Law, Appendix "D".
When completed, this form will be maintained in Fire Prevention Records.

PROPERTY RELEASE FORM

The Nipissing Township Fire Department has responded to the address below and has taken every reasonable precaution to prevent further damage other than that caused by the incident or by NTFD taking necessary remedial action to stabilize the incident and/or eliminate obvious hazards.

Date:_____ Time of incident occurrence:_____:_____:_____

Owner/Occupant Name:_____

Incident Address:_____

Scene Description and/or Conditions:_____

_____

_____

_____

Services Disconnected/Shut Off/Leaking:

Electric ☐ Oil ☐ Propane ☐ Other_____

Nipissing Township FD Incident Commander: Print_____

Signature_____

The above noted scene is hereby released to the undersigned owner/occupant/officer/agent who accepts responsibility for the site. The undersigned will endure that the site is made safe by taking whatever lawful action is necessary to do so.

Recipient's Name:_____ Owner ☐ Occupant ☐ Police ☐ Agent ☐

Phone Number:_____
Email:_____

Recipient's
Signature:_____

Date:_____ Time Incident
Released:_____:_____:_____

Fire Safety Material package distributed to Owner/Occupant: ☐
This form is issued per the Establishing and Regulating By-Law, Appendix "D".

TOWNSHIP OF NIPISSING FIRE DEPARTMENT
ESTABLISHING AND REGULATING BY-LAW NO. 2023-15

APPENDIX "E"
PRIVATE ROAD STANDARDS FOR FIRE AND EMERGENCY RESPONSE

Purpose:
The purpose of this policy is to provide information to property owners on private roads, private lanes and/or private driveways as to the standard that private roads, private lanes and private driveways shall be maintained in order to receive Municipal Fire Services to their property.

Private roads, private lanes and/or private driveways not maintained to the standards established herein may have emergency response services withdrawn or receive a significantly delayed and diminished level of response.

Definitions:

Private Road means any private road, lane, ramp, un-assumed and unmaintained Municipal road allowance, or other means of vehicle access to or from a building or structure and may include part of a parking lot.

Dead-end driveway means a dead-end road over 150 feet in length serving a single residence.

Private Road Standards:
The private road standard must meet the following requirements:

a) Have a clear width of not less than 6m (19'8").
b) Have an overhead clearance of not less than 4m (13'6").
c) Have a minimum curve radius of 14m (45') on all curves in the roadway.
d) Have a turnaround facility for any dead-end road that allows for the parking and turning around of fire apparatus. Turnarounds must not exceed 5% in slope.
e) Dead-end driveways exceeding 90m (295') from a public road shall provide a turn around facility sufficient to allow for turning around of fire department vehicles and apparatus.
f) Driveways and Single lane roads that are in excess of 120m (400') shall provide 6m (20') wide by 12m (40') long turnouts at a maximum spacing of ½ the driveway length or 150m (500'), whichever is less. Wherever visibility is limited, these distances should be reduced appropriately.
g) Have a change in gradient of not more than 1 in 12.5 over a minimum distance of fifteen (15) meters.
h) The average road grade shall not exceed 12% and no grade shall exceed 15% gradient.
i) Have an unobstructed path of travel for the firefighter from the vehicle to the principal entrance or entrances which shall not exceed sixty (60) meters.
j) Be designed to support the expected loads imposed by firefighting apparatus and be surfaced with material designed to permit accessibility under all climate conditions. The structural section of the road shall be designed to support 50,000 pounds of vehicle weight.
k) Bridges on private roads must be engineered to withstand the weight of the aforementioned apparatus and must be inspected by an engineer every ten years to certify the weight allowance.
l) Private roads are to be maintained free of pot holes, snow, ice and foreign debris. Appropriate cross-drainage shall be provided to prevent ponding on the road.

m) Private roads that provide access to more than one property cannot be obstructed by a fence or other mechanism that may impede through traffic.

n) Damage to emergency service vehicles resulting from the lack of adherence to this policy will result in the property owner being liable for all vehicle towing and/or repair costs. Notwithstanding, if the property owner does not pay forthwith, the associated costs may be incorporated with their property tax roll.

o) Have the Civic Address prominently displayed in accordance with the Municipal By-Law.